

# HOW COMMUNITIES CAN STOP DESTRUCTIVE DEVELOPMENT PROJECTS IN ZAMBIA

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## Complete Community Opposition How-To

A practical guide for communities facing destructive development projects in Zambia, grounded in the environmental authorisation system under the Environmental Management Act, the public right to review and appeal, the public-documents rule, and the possibility of suing a foreign parent company abroad

*This guide uses the Zambian legal terms you will actually encounter (the project brief and the environmental impact statement, the terms of reference, the decision letter, ZEMA and the Minister, the environmental audit, the public hearing, and so on), each explained in plain language where it first comes up. Zambia's EIA regulations were replaced in 2026 and now sort projects into five classes; the core mechanics below apply, but check which regulations govern your project before counting days or classes.*

**A note on terms.** Important terms are shown in **bold** the first time they appear, with a plain-language explanation right where they come up.

**A note on money.** Budgets in this guide are in Zambian kwacha (ZMW). Every figure is indicative — most Zambian community campaigns run on very little cash, because the key documents are legally public and the first appeal is administrative. Treat the ranges as a menu, not a bill.

**A note on currency.** New environmental impact assessment regulations were made under the Environmental Management Act in 2026, replacing the 1997 rules. They introduce a **five-class** project system, a **three-year lapse** on approvals where construction has not begun, and a formal mechanism for **transferring a decision letter** when a project changes hands. Verify the current text before relying on procedural detail.

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## TABLE OF CONTENTS

1. **INTRODUCTION & FRAMEWORK** — Why this matters, how this works, what to realistically expect
2. **HOW THE SYSTEM WORKS** — Who decides, how a decision is made, and the words you'll need
3. **QUICK REFERENCE: SUCCESS RATES** — Effectiveness by step and combined, with real-world grounding
4. **STEP 1: TARGET IDENTIFICATION** — What you're fighting, who controls it, when the decision is final
5. **STEP 2: DOCUMENTATION** — How to prove harm (three documentation layers)
6. **WHAT TO GATHER, AND WHERE TO FIND IT** — The records that win cases, and how to get them
7. **STEP 3: BUILDING LOCAL OPPOSITION** — How to organise (Foundation → Public Launch → Coalition → Escalation)
8. **STEP 4: LEGAL CHALLENGES** — Objections, appeals, the courts, and the foreign parent
9. **TURNING YOUR EVIDENCE INTO ARGUMENTS** — Matching each fact to the ground that wins
10. **STEP 5: MEDIA STRATEGY** — How to generate coverage
11. **EMAILS & LETTERS** — Ready-to-use messages communities can copy and send
12. **IF YOU HAVE LITTLE TIME OR FEW RESOURCES** — The rapid-fire version
13. **WHEN THE SYSTEM IS TILTED** — When opposition faces systemic barriers
14. **WHEN IT'S ACTUAL CORRUPTION — AND WHO IS CAPTURED** — Reading capture actor by actor
15. **INTEGRATION & TIMELINE** — How all five steps work together over a 12-month campaign
16. **FINAL ASSESSMENT** — Realistic outcomes, when to continue, when to reassess

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## INTRODUCTION & FRAMEWORK

### Why This Matters

Community action changes project outcomes in Zambia — and Zambian villagers have achieved something few communities anywhere have managed: **they sued a British multinational in London and won the right to have their case heard there**. In **Lungowe v Vedanta**, 1,826 residents of Chingola brought claims over pollution from the Nchanga copper mine, alleging harm to health, property, income and land use from discharges into the **Mushishima stream and Kafue River**. The English courts took jurisdiction — partly because of doubts that claimants could obtain **substantial justice in Zambia** — and in **2019 the UK Supreme Court** let the case proceed against both the Zambian

operator and its **UK parent**. It **settled in 2021** for more than **2,500 villagers**, without admission of liability. The precedent stands: where a Zambian project is run by a foreign-listed parent's subsidiary, that parent may answer at home.

The domestic system matters just as much. Under the **Environmental Management Act**, projects require authorisation from **ZEMA**, granted or refused in a **decision letter** carrying conditions. The Act provides a **right to a clean, safe and healthy environment, public participation and access to environmental information**, and — unusually — gives **members of the public a right to initiate review and appeal of the Agency's decisions**, to the **Minister** and then the **High Court**. Objectors here have a route, not just a grievance.

The regulations reinforce that. The developer must **publicise the project, its effects and benefits, in the mass media, in a language understood by the community**. ZEMA must distribute the **environmental impact statement** to ministries, councils, NGOs and **interested and affected parties**, and place copies **in public buildings in the vicinity of the site**. Any **public hearing** must be at a venue **convenient and accessible to those likely to be specifically affected**. And a sweeping provision makes the **project brief, statement, terms of reference, public comments, hearing report and decision letter all public documents**. After approval, an **environmental audit** is required within a defined window, with annual reporting.

The honest counterweight is heavy. Copper dominates the economy and the largest operators are among the country's biggest employers, which shapes appetite for enforcement. Regulatory capacity is stretched against the Copperbelt's legacy pollution. Domestic remedies have been slow and uncertain — a point the English courts relied upon. Much rural land is customary, held through chiefs, affecting who is consulted. And the rules changed in 2026, so procedure must be checked.

**What "winning" realistically means.** Rarely a mine cancelled. More often: an authorisation **refused, conditioned, or overturned on appeal**; a **public hearing** held where people can actually reach it; conditions and an **audit** enforced; remediation and compensation; an approval that **lapses** because works never started; or — where a foreign parent is involved — a claim abroad producing a settlement for thousands. The realistic goal is to use the public-documents rule and the public appeal right properly, and to know that if the domestic route fails, it is not necessarily the end.

## The Strategic Framework

Five steps that reinforce each other:

1. **Target identification** — establish the project's class, the documents, and the deadlines.
2. **Documentation** — build a record strong enough for ZEMA, the Minister, the High Court, and, if it comes to it, a foreign court.
3. **Local opposition** — organise so the hearing is demanded and filled and the record is real.
4. **Legal challenges** — objections, the public right of review and appeal, the courts, and parent-company liability.
5. **Media strategy** — generate coverage, including in the parent company's home country.

No single step wins alone. In Zambia the combination that works is **the public documents, the appeal right, and — where a multinational is involved — the leverage of its home jurisdiction**.

## Critical Caveat: A Tilted System Can Make Opposition Harder (But Doesn't Make It Impossible)

Zambia's system depends on an agency stretched thin against a very large industry, and domestic remedies have been slow enough that foreign courts took note. Assessing that honestly helps you choose the right tools: the strongest routes are **obtaining the public documents as of right, demanding a hearing where affected people can attend**, using the **public right to appeal ZEMA's decision to the Minister and then the High Court**, enforcing **conditions and audits**, and — where the operator is a subsidiary — pursuing the **parent company abroad**. Section 13 deals honestly with tilted situations.

## How to use this guide

Read Sections 1–3 once, and Section 4 immediately if a project brief or statement has been submitted. Sections 5–8 run in parallel. Sections 9–11 are reference material. Section 12 pulls it onto one timeline; Section 13 helps you judge how far to take it.

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# HOW THE SYSTEM WORKS

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Before you can fight a project you have to know who decides it, how, and the words the system uses. Zambia is a unitary republic with **provinces, districts** and elected **councils**, alongside **chiefs** whose authority over customary land remains central in rural areas. Environmental regulation rests on the **Environmental Management Act No. 12 of 2011**, which replaced the older pollution-control statute, and on the **environmental impact assessment regulations** made under it — replaced in 2026 by a new set introducing a five-class system.

## The bodies that decide — and what each one controls

**ZEMA (Zambia Environmental Management Agency).** The environmental regulator, and the continuation, under a new name, of the former Environmental Council. It receives the **project brief** or **environmental impact statement**, sets or approves the **terms of reference**, circulates the statement, convenes **public hearings**, and issues the **decision letter** approving or refusing the project with conditions. Afterwards it monitors compliance, requires **environmental audits**, and receives annual reports.

**The Minister responsible for the environment.** The first level of appeal. Because the Act gives **members of the public** a right to initiate review and appeal of ZEMA's decisions, this is a route that belongs to objectors as well as developers.

**The High Court.** Hears appeals from the Minister's decision, and judicial review generally.

**Line ministries, local authorities and councils.** Mining, water, lands and local government authorities grant the underlying licences; councils are circulated with the statement and are political actors in their own right.

**Chiefs and customary land.** Much rural land is customary, administered through chiefs. Where a project needs land, the chief's position and any conversion to leasehold are central facts — and a chief's consent is not the same as consent from the households who use the land.

**The foreign parent, where there is one.** Not a Zambian institution but in practice a decision-maker: where the operator is a listed multinational's subsidiary, the parent's board, lenders and home courts may be more responsive than any domestic body.

**Which one is "yours"?** Ask: what **class** is the project under the new regulations, and does it require a **project brief** or a full **environmental impact statement**? Which ZEMA office handles it? Is the land **customary or leasehold**, and which chiefdom? Is the operator a **subsidiary of a foreign parent**? Pinning this down is Step 1.

## How a decision is actually made — the journey of a project

Under the Act and the regulations the path is roughly:

1. **Classification.** Projects are now sorted into **five classes** by scale, environmental sensitivity and sector. **Class I** captures the most significant — large-scale mining, major dams, nuclear power, very large industrial estates — while the lowest class covers small quarrying, fuel stations and small solar. The class determines the depth of assessment and the process that follows, so establishing it is the first practical task.
2. **Project brief or environmental impact statement.** Lesser projects submit a **project brief**; more significant ones must prepare a full **environmental impact statement**, preceded by **terms of reference**.
3. **Publicity and scoping.** The developer must **publicise the intended project, its effects and benefits, in the mass media, in a language understood by the community**, and must run a **public consultation process** so that public views are taken into account in preparing the terms of reference. A terms of reference drafted without that consultation is defective at the root.
4. **Circulation of the statement.** ZEMA distributes the environmental impact statement to relevant ministries, local government units, parastatals, non-governmental and community-based organisations and **interested and affected parties**, and places copies **in public buildings in the vicinity of the site**. If the statement is not where it should be, that is a documentable failure.
5. **Public comment and hearings.** Comments are invited, and a **public hearing** may be held — and where it is, it must be at a venue **convenient and accessible to those persons likely to be specifically affected by the project**. A hearing held far from the affected village does not meet that description.
6. **Decision letter.** ZEMA issues a **decision letter** setting out the project, its potential impacts, the mitigation proposed, and the **conditions** under which it may operate. Under the new regulations the letter **lapses if land preparation and construction have not started within three years**, though an extension may be sought before expiry, with ZEMA deciding whether a fresh assessment, a supplement, or simple continuation is appropriate.
7. **Review and appeal.** Any person dissatisfied with ZEMA's decision may **appeal to the Minister**, and from the Minister **to the High Court**. The Act separately gives the public a right to **initiate review** of the Agency's decisions.
8. **Audit and monitoring.** The developer must undertake an **environmental audit** within a window running from

roughly a year to three years after completion or commencement, keep accurate records, and submit **annual reports**; ZEMA may require further audits and inspectors may investigate compliance with conditions.

## The rulebook — the policies that decide the outcome

- **The Environmental Management Act.** Was authorisation required and obtained? Was the correct class and instrument used? Was there **public participation** as the Act requires? Is the **right to a clean, safe and healthy environment** engaged? Have you exercised the **public right of review and appeal**?
- **The EIA regulations.** Publicity in a language the community understands; consultation on the terms of reference; circulation and local deposit of the statement; an accessible hearing; the decision letter and its conditions; the audit; and the **public-documents rule** covering essentially every substantive document in the process.
- **Sector and land law.** Mining, water and land legislation, and the rules governing **customary land** and its conversion — often the sharpest question for rural communities.
- **Foreign law, where a parent company exists.** The law of the parent's home jurisdiction may impose duties enforceable there, as the Vedanta litigation demonstrated.

## Follow the money — why the system often leans toward "yes"

Understanding the pressures is targeting, not cynicism. Copper dominates Zambia's exports and public revenue, and the largest mining companies are among the country's biggest private employers, which makes regulatory confrontation politically costly; the environmental statement is commissioned and paid for by the developer; ZEMA's capacity is stretched against decades of accumulated Copperbelt pollution; and rural land is often customary, so acquisition can proceed through negotiations that bypass the households who actually farm and fish there. None of this is unlawful, but it explains the default lean — and why the public-documents rule, the appeal right and, where available, the foreign parent are the levers that matter.

## The overseers — who watches the decision-makers

- **The Minister and the High Court** — the statutory appeal chain, open to the public and not only to developers.
- **ZEMA's inspectorate and the audit requirement** — enforcement after approval, and recurring leverage.
- **Parliamentary committees and the Auditor-General** — public money and regulator performance.
- **The Human Rights Commission** — where health and water harms engage rights.
- **Foreign courts, lenders and listing authorities** — where the operator belongs to a multinational group, as Chingola showed.
- **Civil society and the legal profession** — environmental and community organisations, and lawyers who have partnered with foreign firms in transnational claims.

Naming and using the right body matters: in Zambia the most consequential early judgment is usually **whether you can obtain the documents and use the public appeal right — and whether there is a parent company standing behind the operator.**

## QUICK REFERENCE: SUCCESS RATES

These figures are **directional, not guarantees** — patterns across documented Zambian and comparable campaigns, not a controlled study. Use them to prioritise effort. The most important lesson for Zambia sits inside the table: the domestic process gives you **documents as of right and an appeal that belongs to the public**, and where the operator sits under a foreign parent there is a further route that has already delivered compensation to thousands of people.

### Individual Step Success Rates

| Approach                       | Success Rate | Timeline    | Cost (ZMW) | What "Success" Means                        |
|--------------------------------|--------------|-------------|------------|---------------------------------------------|
| Documentation only             | 5-10%        | 1-3 months  | low        | Basis for every other step                  |
| Local opposition only          | 20-30%       | 6-24 months | low        | Local pressure; council engages             |
| Obtaining the public documents | 30-50%       | weeks       | minimal    | The file in hand; the case becomes possible |

|                                            |        |              |                           |                                                                                                 |
|--------------------------------------------|--------|--------------|---------------------------|-------------------------------------------------------------------------------------------------|
| <b>Comments and demand for a hearing</b>   | 20-35% | 1-3 months   | low                       | Hearing held locally; conditions imposed                                                        |
| <b>Appeal to the Minister</b>              | 20-35% | 3-12 months  | low                       | Decision reviewed, conditioned or reversed                                                      |
| <b>High Court appeal / judicial review</b> | 25-45% | 12-36 months | moderate                  | Authorisation set aside                                                                         |
| <b>Enforcing conditions and the audit</b>  | 25-40% | 6-24 months  | low                       | Remediation, monitoring, penalties                                                              |
| <b>Three-year lapse argument</b>           | 20-35% | variable     | low                       | Fresh assessment required                                                                       |
| <b>Claim against a foreign parent</b>      | 35-55% | 24-72 months | high (but usually funded) | <b>Settlement or damages for the community</b>                                                  |
| <b>Docs + local opposition + media</b>     | 30-45% | 6-18 months  | low-moderate              | Pressure plus a stronger case                                                                   |
| <b>All steps combined</b>                  | 50-65% | 12-48 months | moderate                  | Authorisation refused or overturned, conditions enforced, remediation and compensation obtained |

**Key insight:** all steps together are far more effective than any single one — and Zambia has two multipliers. The first is the **public-documents rule**, which entitles you to the project brief, the statement, the terms of reference, the public comments, the hearing report and the decision letter, so a community here should rarely be arguing blind. The second is **transnational liability**: where the operator is a subsidiary of a foreign-listed parent, a claim in the parent's home courts has already produced a settlement for more than two thousand villagers. The distinctive disadvantages are regulatory capacity stretched against a very large industry, the political weight of copper, and domestic remedies slow enough that foreign courts treated them as a reason to take jurisdiction.

*A note on cost: obtaining documents, commenting, demanding a hearing and appealing to the Minister are cheap. High Court proceedings cost more. Transnational claims are expensive but are typically run by specialist foreign firms on conditional or funded terms in partnership with Zambian lawyers, so the cost to the community is not the barrier it appears — the barriers are evidence, organisation and time.*

## Effectiveness Visualization

SUCCESS PROBABILITY (authorisation refused or overturned, conditions enforced, remediation and compensation obtained)

FAVOURABLE SCENARIO (documents obtained, procedural defect, water or health harm evidenced, foreign parent behind the operator):

All steps combined: 50-65%  
Claim against parent: 35-55%  
High Court: 25-45%  
Single step: 5-50%

TILTED SCENARIO (major national employer, purely domestic operator, approval already granted, works advanced):

All steps combined: 30-45%  
Conditions and audit: 25-40%  
Local + media: 15-30%  
Single step: 3-15%

**How to read this honestly.** In Zambia the strongest procedural facts are **failures of publicity and access**: a project never publicised in a language the community understands, terms of reference drafted without the required consultation, a statement never placed in public buildings near the site, a hearing held where affected people could not reach it, or documents withheld despite being **public documents by law**. The strongest substantive facts concern **water and health** — discharges into streams and rivers on which farming and fishing depend, which is precisely the fact pattern that carried the Chingola claims. And the most distinctive strategic fact is that **a foreign parent changes the calculus entirely**: the English courts took jurisdiction over a Zambian pollution claim partly because of doubts about obtaining substantial justice domestically, and the case ended in a settlement covering thousands of claimants. Judge success accordingly: refusal is rare, but **conditions, remediation, compensation and delay are all achievable**, and in the right circumstances so is a remedy abroad.

## Step Importance Ranking (When All Combined)

1. **Documentation** — first in Zambia, because the law makes the documents public and the case is built from them.
2. **Legal challenges** — the public appeal right, the courts, and the parent company.

3. **Local opposition** — which supplies claimants, witnesses, and the persistence a transnational claim demands.
4. **Comments and hearings** — cheap, and the source of the procedural grounds.
5. **Media** — including in the parent's home country, where reputational exposure is greatest.

Winning Zambian campaigns combined the public file, documented harm to water and health, a well-supported community, and — where available — pressure applied in the jurisdiction where the parent company is listed.

## What Zambian Campaigns Actually Show

A few patterns recur. **Communities here reached a foreign supreme court** — in **Lungowe v Vedanta, 1,826 residents of Chingola** sued the operator of the Nchanga copper mine **and its UK parent** over discharges into the **Mushishima stream and Kafue River**, claiming personal injury, property damage and loss of income in negligence and for breaches of **Zambian environmental law**. The English High Court took jurisdiction in 2016, the Court of Appeal upheld it in 2017, and in **2019 the UK Supreme Court** allowed the claim to proceed — understood to mean **UK parents may face liability at home for environmental harm by foreign subsidiaries. It ended in a settlement** — in **January 2021**, more than **2,500 Zambian claimants** settled all claims against the parent and the subsidiary, **without admission of liability**, in an undisclosed amount. **Access to justice at home was part of the reason** — the courts considered whether claimants could obtain substantial justice in Zambia, a sobering comment on domestic remedies as much as an opening abroad. **The remedies sought were concrete** — de-silting, removing contaminated waste, remediating land so people could **live, farm and fish** again, and compensation. **And the domestic framework is usable** — a public right to review and appeal ZEMA's decisions, and regulations making nearly every document **public**. The through-line: **get the documents, prove the harm to water and health, use the appeal that belongs to you — and look hard at who owns the operator.**

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## STEP 1: TARGET IDENTIFICATION

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You cannot fight what you have not precisely identified. Answer five questions, and write the answers in a shared document — this becomes the campaign's factual spine.

### Core Questions You Must Answer

#### Question 1: What Exactly Will Be Destroyed?

Get the specifics: exact location and extent, project type and stage, and what is there now — **streams and rivers used for drinking, washing and fishing, fields and gardens, grazing, forest, and homes**. Obtain the **project brief or environmental impact statement** and list every admitted impact with its page reference. Pay particular attention to **water and discharges**, and to **dust and tailings**, because these are the harms Zambian communities have most often proved.

#### Question 2: Who Has Decision-Making Power?

Identify precisely: (a) the project's **class** under the current regulations and whether it requires a **project brief** or a full **environmental impact statement**; (b) the **ZEMA** office handling it; (c) the **council and district**, and whether the land is **customary** and under which chieftdom; (d) which **sector licence** is sought; and (e) — critically — **who owns the operator**, including any **foreign parent** and where it is incorporated or listed.

#### Question 3: What Specific Action Stops It?

A project can be stopped or reshaped at several points: authorisation **refused or conditioned**; a decision **reversed on appeal to the Minister**; an authorisation **set aside by the High Court**; **conditions and the audit enforced**, producing remediation; an approval that **lapses after three years**; or, where a foreign parent exists, a **claim abroad** producing compensation and clean-up. Map them and pursue at least two.

#### Question 4: When Is the Decision Final?

Diarise: the **publicity and comment period** once the project is advertised; the **hearing**, if one is convened; the **decision letter**; and the **appeal period to the Minister**, which is short — confirm it and act at once, since the public right of appeal is worth little if the window closes. Note also the **three-year lapse** on decision letters where construction has not begun, and the **audit window** running from roughly twelve to thirty-six months after operations start, which creates a later, predictable opening.

## Question 5: Are There Documented Financial Interests or Systemic Pressures?

Map, factually and carefully: the operator, its shareholders, and any **foreign parent** — its jurisdiction, its listing, its lenders and its public commitments — since these determine whether a transnational route exists. Note also the project's economic weight locally and nationally. Use public sources: the companies registry, ZEMA's records, mining cadastre information, and the parent's own published disclosures. Build a dated, sourced timeline.

**Output of Step 1:** a one-page fact sheet with the project's description, its class and instrument, the ZEMA office and council, the land tenure and chieftdom, the ownership chain up to any foreign parent, every deadline, and the money map.

### Worked example: which lever is actually open

Suppose a mine expansion discharges into a stream feeding a river on which several villages depend for drinking water, fishing and irrigation, and residents begin to see discoloured water and fish deaths. Working the questions: **Q1** — you record the stream, the river, the households, the gardens and the fisheries, dated. **Q2** — you establish the project's **class**, obtain the **statement**, and check the **ZEMA** office and the council; you also establish that the operator is a **subsidiary of a foreign-listed parent**. **Q3** — the live levers are: demanding the **public documents**, which the regulations make public as of right; commenting and demanding a **hearing held where people can attend**; **appealing** any authorisation to the Minister and then the High Court; enforcing **conditions and the audit** to obtain remediation; and — because of the ownership chain — exploring a **claim in the parent's home jurisdiction**, the route that produced a settlement for thousands of Chingola villagers. **Q4** — you diarise the comment period and the appeal window. **Q5** — the registry and the parent's disclosures show the chain. In an afternoon you know that **the documents, the appeal and the parent company are the campaign**.

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## STEP 2: DOCUMENTATION

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Documentation in Zambia has an unusual advantage and an unusual destination. The advantage is that the law makes nearly every document in the process a **public document** — the project brief, the environmental impact statement, the terms of reference, the public comments, the report of whoever presided at a hearing, and the decision letter. The destination is potentially wider than the country: where a foreign parent stands behind the operator, the evidence you gather may end up before a court in another jurisdiction, where the standard of proof and the appetite for detail are exacting. Build to that standard from the start.

### The Three Documentation Layers

#### LAYER 1: BASELINE CONDITIONS DOCUMENTATION

Prove what exists **before** the project — or, for an operating mine, what exists now and how it has changed.

**Water first, and in detail.** Document the stream, river, spring and wells: location, colour, flow, smell, and their uses — drinking, washing, livestock, irrigation, fishing. Photograph the same points repeatedly, dated, and record fish deaths, crop failures and livestock illness with dates. The Chingola claim rested on exactly this kind of evidence about discharges into a stream and river on which farming and fishing depended.

**Land, gardens and livelihoods.** Document fields, gardens, grazing and fishing grounds and the households working them, including whether the land is **customary** and which chieftdom applies.

**Health.** Record illness patterns as the community experiences them — skin, stomach and respiratory complaints — with dates, ages and locations. A contemporaneous record beats reconstruction years later.

**Homes and settlement.** Document dwellings and their distance from works, tailings facilities, discharge points and haul routes.

**How to hold it.** Keep everything dated, located, backed up and held collectively. If a transnational claim becomes possible, continuity and dating will matter enormously.

#### LAYER 2: DOCUMENT AND PROCESS ANALYSIS

Show what the project would do, and whether the process was properly run. Catalogue four things:

1. **Get the file — it is public.** Request the **project brief or environmental impact statement**, the **terms of reference**, the **public comments**, the **hearing report** and the **decision letter with its conditions**. These are public documents by regulation, so a refusal is not merely unhelpful but contrary to the rules, and should be recorded in writing.
2. **Publicity and consultation.** Was the project **publicised in the mass media in a language the community understands**? Was there a **public consultation process** informing the terms of reference? Was the statement **placed in public buildings near the site**? Was any **hearing** held at a venue **convenient and accessible to those specifically affected**? Each failure is a documentable ground.
3. **The statement's substance and gaps.** Mine it for admitted impacts with page references, and identify omissions — water balance and downstream users, tailings and seepage, cumulative effects with other operations in the same catchment, and vague or unbudgeted mitigation.
4. **Conditions and audit compliance.** Where a decision letter exists, obtain its **conditions** and check performance against each; establish whether the required **environmental audit** was carried out within its window and whether **annual reports** have been filed. Non-compliance is enforceable and is also powerful evidence.

**Get expert eyes on it.** A signed technical opinion carries far more weight before ZEMA, the Minister, a court, or a foreign firm assessing a claim. Universities, the engineering professions and environmental organisations are realistic sources; **independent water sampling upstream and downstream, dated and with chain of custody**, is the most valuable technical evidence a Zambian community can produce.

## LAYER 3: HEALTH & ECONOMIC IMPACT DOCUMENTATION

Translate harm into human and economic terms — the form in which both domestic appeals and foreign claims are framed:

- **Health and water access** — households whose water source is affected, distances now walked, illness, and the cost of alternatives.
- **Livelihoods** — fields, gardens, fishing and small trade, quantified per household where possible; in the Chingola claims, loss of income from **farming and fishing** was central.
- **Property and amenity** — damage to land and homes, and loss of the ability to use land safely.
- **Remediation needs** — what must actually be done: de-silting, removing contaminated waste, restoring land so people can live, farm and fish again.

Package this layer twice: a rigorous version in **English** for ZEMA, the Minister, the courts and any foreign lawyer, and a plain-language version in the **local language** for community meetings.

## How to Structure Your Documentation

- **Phase 1: Baseline (Weeks 1-4)** — water first, with fixed photo points; land, health and settlement.
- **Phase 2: The file (Weeks 2-8)** — request every public document and record any refusal.
- **Phase 3: Analysis (Months 2-3)** — the technical critique with professional sign-off, and sampling where pollution is alleged.
- **Phase 4: Compliance (ongoing)** — conditions, audits and annual reports, monitored month by month.

## Common Documentation Pitfalls (What Fails)

- **Not demanding the documents** — they are public by law; ask in writing and keep the reply or the silence.
- **Sampling without dates, locations or chain of custody** — untraceable samples persuade nobody.
- **Photographing inconsistently** — use fixed points and repeat them; change over time is the argument.
- **Ignoring the conditions and the audit** — post-approval compliance is where remediation is won.
- **Recording harm only in aggregate** — claims, domestic or foreign, are built household by household.
- **Losing continuity** — a record kept for years is worth far more than a burst of activity.

## Documentation Budget Breakdown (ZMW)

| Item                                   | Low (volunteer/pro-bono) | Higher (commissioned) |
|----------------------------------------|--------------------------|-----------------------|
| Photography, GPS, fixed-point records  | minimal                  | modest                |
| Copies of public documents             | modest                   | modest                |
| Water sampling and laboratory analysis | modest                   | moderate              |
| Technical/academic review              | often free               | moderate              |

|                                    |            |          |
|------------------------------------|------------|----------|
| technical/academic review          | often free | moderate |
| Legal advice and appeal filing     | modest     | moderate |
| Community meetings and translation | modest     | modest   |

Most is inexpensive. Spend where it counts: **independent water testing** and **early legal advice** — and note that where a transnational claim is viable, the heaviest costs are usually carried by the lawyers, not the community.

## WHAT TO GATHER, AND WHERE TO FIND IT

Zambia is unusual in this series in that the law tells you the documents are public. Use that squarely.

**ZEMA.** The **project brief** or **environmental impact statement**, the **terms of reference**, the **public comments**, the **report of the person presiding at any public hearing**, and the **decision letter with its conditions** — all of which the regulations designate **public documents**. Also request inspection records, **environmental audits** and **annual reports**, and note that the Act requires ZEMA to maintain an **environmental information registry**.

**Public buildings near the site.** Copies of the statement must be placed in **public buildings in the vicinity of the site**. Check the council and district offices — and if it is not there, record that.

**The council and district.** Correspondence, resolutions, and the council's own copy of the statement.

**Sector authorities.** The mining or other sector permit, its terms and dates.

**Land records and the chiefdom.** Whether the land is **customary or leasehold**, any conversion, any agreement said to have been reached with traditional authorities — and what the affected households themselves understood.

**Ownership.** The companies registry for the operator, its shareholders and directors — then, crucially, the **parent's own disclosures** at home: annual reports, sustainability and human-rights statements, filings and lender commitments. In the Vedanta litigation the parent's public statements about supervising subsidiaries' standards were central to the duty-of-care argument.

**How to force a document open.** Rely on the regulations' **public-documents provision** and the Act's **access to information** and **participation** guarantees. Make requests in writing, keep proof, and treat any refusal as a documented breach — useful on appeal and later as evidence about domestic process.

**Free and low-cost help.** Zambia has environmental and community organisations, university researchers, and lawyers experienced in mining disputes, some of whom have partnered with foreign firms in transnational claims. **Approaching them early is the highest-value single step.**

**Tie it to the map.** The dots and layers here are your starting index — a mapped project points you to ZEMA and the sector licence, and the local-ally entries point you to organisations and lawyers already working nearby.

## STEP 3: BUILDING LOCAL OPPOSITION

### Critical Insight About Organizing

In Zambia, organising has a specific and unusually demanding function: it must produce **a documented community, household by household**. The domestic appeal right belongs to the public, so you need people willing to be named appellants. And if a transnational claim ever becomes viable, what a foreign court or law firm will need is not a petition with a thousand signatures but a register of **individual claimants, each with their own losses, their own water source, their own dates**. The Chingola claims were brought by more than eighteen hundred named residents and settled for over two and a half thousand — that is the shape of organisation that delivers here.

Three principles carry special weight: **household-level records** (organise so that every affected family's losses are recorded individually and consistently over time); **continuity** (these processes run for years, and a community that keeps its register and its photographs is worth far more than one that mobilises intensely and disperses); and **honest expectation-setting** (a foreign claim can take many years and may end in an undisclosed settlement without admission of liability, which is a real result but not a vindication — say so at the outset).

## PHASE 1: FOUNDATION (Weeks 1-6)

**Step 1a: Start with the most affected — and start the register.** Reach the households whose water, land, fishing or health are affected, and begin, from day one, a simple **household register**: name, location, water source used, land worked, losses observed, dates. Begin fixed-point photography of the stream and river.

**Step 1b: Affinity groups by concern.** Let people join through water, fishing, gardens, grazing, health or dust. In mining areas water and fishing mobilise fastest, and health concerns bind people who are otherwise economically dependent on the mine.

**Step 1c: Request the public documents and get advice.** Write to ZEMA for the **statement, terms of reference, comments, hearing report and decision letter**, which are public documents. Contact an environmental or community organisation and a lawyer, and ask early whether the operator has a **foreign parent**.

## PHASE 2: PUBLIC LAUNCH (Weeks 6-14)

**Step 2a: Community meeting.** Inform, decide collectively, and mandate representatives. Be explicit about timelines: the comment period is short, the appeal period is short, and a transnational claim is long.

**Step 2b: Comments and a demand for an accessible hearing.** Submit written comments, and demand in writing that any **public hearing** be held at a venue **convenient and accessible to those specifically affected** — naming the villages and the distances (Section 8C).

**Step 2c: Record the process failures.** Was the project **publicised in a language the community understands**? Was the statement **placed in public buildings nearby**? Were the terms of reference consulted on? Put each failure in writing at the time.

**Step 2d: Media at launch.** Time coverage to the comment period or the hearing — and, where a foreign parent exists, prepare to reach media in its home country too.

## PHASE 3: COALITION EXPANSION (Months 3-8)

**Step 3a: Broaden the alliance.** Bring in downstream villages along the same river, fishing and farming associations, the **council** and ward councillors, the **chiefdom** where customary land is involved, churches, health workers who see the illness patterns, universities, and national environmental organisations.

**Step 3b: Coalition agreements.** Agree who the named appellants will be, who instructs lawyers, who holds the register and photographs, and who speaks publicly. Where a transnational claim may follow, agree early how claimants are identified and how a settlement would be handled — disputes about money have broken more communities than any company has.

**Step 3c: Build the household register properly.** Standardise it: one form per household, updated periodically, stored securely and duplicated off-site. Unglamorous, and the most valuable organisational asset a Zambian community can hold.

## PHASE 4: SUSTAINED PRESSURE (Months 6-18)

**Step 4a: Use the appeal that belongs to you.** If authorisation issues, **appeal to the Minister** within the period, and from the Minister to the **High Court** if necessary. Because the Act gives the public a right to initiate review and appeal, this is not a developer-only remedy.

**Step 4b: Enforce conditions and the audit.** Obtain the **conditions**, monitor them, and press ZEMA to require the **environmental audit** and to act on non-compliance. Remediation is most often won here rather than at approval.

**Step 4c: Explore the parent company.** Where the operator is a subsidiary, gather the parent's own **public statements** about environmental standards and oversight of subsidiaries, and seek advice from lawyers experienced in transnational claims. Reputational and legal exposure in the parent's home jurisdiction is real leverage — it produced a settlement for thousands of Zambians.

**Step 4d: Public actions and safety.** Peaceful meetings, petitions and press work are effective. Avoid confrontation at mine gates or infrastructure, take advice before demonstrations, and note that where communities depend on a mine economically, opposition brings social and employment pressure on individuals — plan for that.

## Worked example: a community that unlocks the strong levers

Several villages along a stream feeding a major river find the water discoloured, fish dying, and gardens failing near a mine's discharge. Anger runs high and a blockade of the mine road is proposed — the course most likely to end in arrests and to split a community where many families depend on mine wages. What converts the anger into force happens differently. First, three residents begin a **household register** and **fixed-point photography** of the stream, dated, and keep both going month after month. Second, the community writes to ZEMA requesting the **environmental impact statement, terms of reference, comments, hearing report and decision letter** — which the regulations make **public documents** — and records the reply or the silence. Third, they establish that the project was **never publicised in a language the community understands** and that the statement was **not placed in any public building nearby**, and they put both failures in writing. Fourth, they arrange **independent water sampling** upstream and downstream, dated and with chain of custody, through a university contact. Fifth, when authorisation issues, they **appeal to the Minister** as members of the public entitled to do so, and prepare for the High Court. In parallel, having established that the operator is a **subsidiary of a foreign-listed parent**, they gather the parent's own published commitments on environmental oversight and approach lawyers experienced in transnational claims — the route by which villagers from Chingola reached the UK Supreme Court and, ultimately, a settlement for more than two and a half thousand people. The lesson generalises: **in Zambia, the household register and the fixed-point photographs you start in week one are what make both the domestic appeal and the foreign claim possible years later.**

## Opposition Building Budget: Year-Long Campaign (ZMW)

Low to moderate. The recurring costs are transport along the river and to the district and provincial centres, printing register forms and materials, communications, meetings, and copying. **Water sampling and analysis** is the main technical cost and is worth prioritising. Legal costs for the domestic appeal are modest; where a transnational claim proceeds, the costs are typically carried by the instructing firms. Keep transparent, collective accounts — and agree in advance how any compensation would be distributed, because that question, unresolved, has damaged communities more than the litigation itself.

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## STEP 4: LEGAL CHALLENGES

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Zambia gives communities a clear domestic ladder and, uniquely in this series, a proven route outside the country. Three tracks — the administrative process, the domestic appeal chain, and the foreign parent.

### TRACK 1: THE ADMINISTRATIVE PROCESS (the front door)

- **Demand the public documents.** The regulations make the **project brief, environmental impact statement, terms of reference, public comments, hearing report and decision letter** public documents. Ask in writing for all of them, and record any refusal — a refusal is both an obstacle and a ground.
- **Attack failures of publicity and consultation.** The developer must **publicise the project, its effects and benefits, in the mass media, in a language understood by the community**, and must consult so that public views inform the **terms of reference**. Where that did not happen, say so in writing, because it goes to the root of the assessment.
- **Insist the statement be locally available.** ZEMA must circulate the statement to ministries, councils, NGOs and community organisations and **interested and affected parties**, and place copies **in public buildings in the vicinity of the site**. Check, and record the absence.
- **Demand an accessible hearing.** Any public hearing must be at a venue **convenient and accessible to those persons likely to be specifically affected**. Name the villages and the distances in your request.
- **Comment substantively**, and press for specific, verifiable **conditions** in the decision letter — because conditions are what you will later enforce.

### TRACK 2: THE DOMESTIC APPEAL CHAIN (the public's remedy)

- **Review and appeal belong to the public.** The Act gives **members of the public** the right to initiate review and to appeal decisions of the Agency. This is the pivotal domestic fact: objectors are not confined to lobbying.
- **Appeal to the Minister.** Any person dissatisfied with ZEMA's decision on an environmental authorisation may appeal to the **Minister**; the period is short, so act immediately on the decision letter.
- **Appeal to the High Court.** From the Minister's decision, appeal lies to the **High Court**, which also exercises judicial review over administrative action generally.
- **Enforce conditions and the audit.** After approval, the developer must comply with conditions, undertake an **environmental audit** within the prescribed window, keep records and file **annual reports**; ZEMA may require further

audits and inspectors may investigate. Non-compliance is a route to remediation and penalties, and under the current regulations contraventions attract substantial fines.

- **The lapse.** A decision letter now **lapses if land preparation and construction have not begun within three years**, with any extension a matter for ZEMA — so a stale approval is vulnerable.

## TRACK 3: THE FOREIGN PARENT (the distinctive route)

- **Why it exists.** Where the Zambian operator is a **subsidiary of a company incorporated or listed abroad**, that parent may owe a duty of care to people affected by its subsidiary's operations, enforceable in the parent's home courts. In the Chingola litigation the English courts took jurisdiction over claims by **1,826 Zambian residents** against operator and UK parent, and in **2019 the UK Supreme Court** allowed the claim to proceed.
- **What made it possible.** The claims were founded in **negligence and breaches of Zambian environmental law**; the harm was **personal injury, property damage and loss of income** from discharges into a stream and river relied on for **farming and fishing**; and the courts weighed whether claimants could obtain **substantial justice in Zambia**. The parent's own **public statements about supervising subsidiaries' environmental standards** were central to the duty-of-care argument.
- **What it produced.** In **January 2021** the claims of more than **2,500 Zambian villagers** settled, **without admission of liability**, in an undisclosed sum — alongside demands for de-silting, waste removal and remediation.
- **How to use it.** Establish the ownership chain; collect the parent's published environmental and human-rights commitments; build the **household-level evidence** such a claim requires; and seek advice from lawyers experienced in transnational litigation, who typically work with Zambian counsel and carry the costs.

## The three legal challenge types

### TYPE 1: THE ADMINISTRATIVE PROCESS (the front door)

Public documents, publicity and consultation failures, local availability of the statement, an accessible hearing, and conditions.

### TYPE 2: THE DOMESTIC APPEAL CHAIN (the public's remedy)

Review and appeal to the Minister, then the High Court; enforcement of conditions and audits; the three-year lapse.

### TYPE 3: THE FOREIGN PARENT (the distinctive route)

A claim in the parent's home jurisdiction, founded on negligence and Zambian environmental law, built on household-level evidence.

## Legal Strategy Decision Tree

1. **Has a project been advertised or a statement filed?** → Request every **public document** in writing now.
2. **Was there publicity in the local language, and is the statement available locally?** → If not, record both failures immediately.
3. **Is a hearing to be held?** → Demand a venue **accessible to the affected villages**.
4. **Has a decision letter issued?** → **Appeal to the Minister** at once; the window is short and the right is yours.
5. **Is the operator a subsidiary of a foreign company?** → Begin building household-level evidence and take advice on a claim abroad.

## Litigation Success Factors

The public documents in hand; documented failures of publicity, availability and hearing accessibility; **independent water sampling** with dates and chain of custody; a **household register** recording losses individually; named appellants; prompt use of the short appeal window; and, for a transnational claim, a clear ownership chain and the parent's own published commitments.

## What to Avoid: Legal Failures

Not asking for documents the law already makes public; missing the appeal period; treating approval as the end when conditions and audits remain enforceable; recording harm only in aggregate; and assuming that because domestic remedies are slow, there is no remedy — the slowness of domestic process was part of why a foreign court took the Chingola case.

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# TURNING YOUR EVIDENCE INTO ARGUMENTS

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Evidence only counts when aimed at a specific ground. Here is how the records you gathered map onto the arguments that most often work in Zambia.

**No publicity in a language the community understands → defective process.** Feed it with: what was published, where, in which language, and when.

**The statement never placed in public buildings near the site → breach of the circulation requirement.** Feed it with: your dated checks of the council and district offices.

**Terms of reference drafted without public consultation → the assessment is flawed at the root.** Feed it with: the terms of reference and the absence of any consultation record.

**A hearing held where affected people could not attend → breach of the accessibility requirement.** Feed it with: the venue, the distances, and who could not travel.

**Public documents refused → breach of the public-documents rule and of access to environmental information.** Feed it with: your written requests and the replies or silence.

**Discharges harming water, fishing and gardens → the substantive case, domestically and abroad.** Feed it with: fixed-point photographs, sampling with chain of custody, the household register, and fish and crop losses by date.

**Conditions unmet or no audit carried out → enforcement, remediation, penalties.** Feed it with: the conditions, the audit window, and dated evidence of non-compliance.

**A foreign parent that publicly claims to supervise subsidiaries' environmental standards → duty of care abroad.** Feed it with: the parent's annual reports, sustainability statements and public commitments, alongside the harm evidence.

The pattern: **lead with the procedural failures and the water evidence**, keep every record household by household, and follow the ownership chain.

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## STEP 5: MEDIA STRATEGY

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Media matters in Zambia both domestically and — distinctively — **in the parent company's home country**, where reputational and investor exposure has moved companies that were unmoved locally.

### How Journalists Actually Work

Reporters need a hook, a human face, a conflict, and a document. Hand them the fixed-point photographs, the statement's own admission with a page reference, a named fisher whose livelihood has gone, and the document request that went unanswered. Make it easy, and never give a fact you cannot stand behind.

### The Newsworthiness Formula

Local stakes + a credible threat + a documented failure + a David-and-Goliath frame + a strong image = coverage. Three angles reliably travel: **water and fish, health in mining communities**, and **a multinational parent whose published commitments do not match what is happening on the ground** — the last being especially potent in the parent's home market.

### Know the Outlets That Cover This Beat

Map the national dailies and broadcasters and their environment and mining correspondents, community radio — which reaches villages directly in local languages — and, where a foreign parent exists, the **financial and investigative press in its home jurisdiction**, which follows litigation and listing risk.

### Building Reporter Relationships (The Key)

Give reporters accurate, sourced material and become their reliable contact. One trusted relationship beats a dozen releases. Offer a site visit along the river and access to households, and be scrupulously accurate: with a major employer involved, one unsupported claim dismisses the rest.

## Why media matters even when it doesn't make the front page

Coverage reaches the university that will test your water, the organisation that will support the appeal, the foreign law firm assessing a claim, and the investors who ask the parent uncomfortable questions. It also documents, with dates, what the community was saying and when.

## Sample Media Timeline

Launch with the water evidence and the unanswered document request; refresh at each milestone — the hearing and where it was held, the decision letter, the appeal to the Minister, the audit or its absence, and any step taken abroad.

## Media Measurement

Track coverage, but measure what matters: whether the documents are released, whether a hearing is held locally, whether the Minister engages, whether ZEMA requires an audit, and whether the parent company responds.

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## EMAILS & LETTERS

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Ready-to-adapt templates. Keep them factual, dated, and sourced. Deliver important ones by hand against a stamped receipt or by registered post, and keep proof — in Zambia the documented request and the dated record are what carry both the domestic appeal and any claim abroad. Have a lawyer review anything heading to court.

### 8A. Email to a reporter (story pitch)

**Subject:** [District, Province]: [river/stream] discoloured below [project]; documents requested and not provided

Dear [name],

Since [date], residents of [villages] have recorded discoloured water, fish deaths and crop failure along the [name] stream where it enters the [name] river, below [project] operated by [company]. We attach dated photographs taken from the same points on [dates].

On [date] we asked ZEMA for the environmental impact statement, the terms of reference, the public comments, the hearing report and the decision letter — all of which the regulations make **public documents**. [We have had no reply / the request was refused.] Copy attached.

[Number] households depend on this water for drinking, washing, irrigation and fishing. [Where relevant: the operator is a subsidiary of [parent], incorporated in [country].]

I can take you along the river and connect you with affected households. Could we speak this week?

[Name] · [Community organisation] · [phone] · [email]

### 8B. Request for the public documents

**Subject: Request for public documents — [project], [district]**

To the Director General, Zambia Environmental Management Agency [copy: [District] Council]:

We, residents of [villages], [district], request copies of the following documents relating to [project] by [company]: 1. the **project brief** and/or **environmental impact statement**; 2. the **terms of reference** and the record of the public consultation informing them; 3. the **public comments** received; 4. the **report of the person presiding** at any public hearing; 5. the **decision letter** and its **conditions**; 6. any **environmental audit** and **annual reports** submitted.

We note that under the environmental impact assessment regulations these are **public documents**. We are willing to pay reasonable copying charges and ask where the documents may be inspected.

Please reply in writing. If any document is withheld, please state the legal basis.

[Names, village, district, date — keep the stamped copy]

## 8C. Comments and demand for an accessible public hearing

### **Subject: Comments on [project] and request for a public hearing accessible to affected communities**

To the Director General, ZEMA:

The residents of [villages] submit the following comments on the environmental impact statement for [project]: 1.

**Water.** [The project discharges into [stream], which joins the [river] used by [number] households for drinking, washing, irrigation and fishing; the statement addresses this at page \_\_\_ but does not assess downstream users at [villages].] 2. **Fishing and gardens.** [Losses recorded since [date]; see attached household record.] 3. **Cumulative effects.** [Other operations discharging into the same catchment are not assessed together.] 4. **Process.** [The project was not publicised in [local language]; the statement has not been placed in any public building in [villages] or at [council offices], contrary to the regulations.]

We request that a **public hearing** be convened, and that — as the regulations require — it be held **at a venue convenient and accessible to those likely to be specifically affected**. [Village] is [distance] km from [proposed venue]; we propose [local venue].

[Names, villages, date; keep the stamped copy]

## 8D. Record of a process failure

### **Subject: Record of non-compliance with publicity and availability requirements — [project]**

To the Director General, ZEMA [copy: [District] Council]:

We record the following, with dates: 1. On [dates] we attended [council offices / district office / named public buildings] in the vicinity of the site to inspect the environmental impact statement. **It was not available.** 2. We are not aware of the project having been **publicised in the mass media in [local language]**, as required; our enquiries of [radio station/newspaper] are attached. 3. [The public hearing on [date] was held at [venue], [distance] km from the affected villages, with no transport provided.]

We request that these matters be remedied and that the periods for comment be extended accordingly.

[Names, villages, date]

## 8E. Appeal to the Minister

### **Subject: Appeal against the decision of ZEMA in respect of [project], decision letter dated [date]**

To the Honourable Minister responsible for the Environment:

We, the undersigned residents of [villages], [district], being members of the public affected by the above project and entitled under the Environmental Management Act to appeal decisions of the Agency, appeal against the decision letter dated [date] on the following grounds: 1. **Publicity.** The project was not publicised in the mass media in a language understood by the community. 2. **Availability.** The environmental impact statement was not placed in public buildings in the vicinity of the site. 3. **Hearing.** [No hearing was held / the hearing was held at a venue not accessible to those specifically affected.] 4. **Substance.** The statement fails to assess [downstream users / cumulative discharges / tailings seepage], and the conditions imposed are insufficient to protect [river] and the [number] households depending on it.

We ask that the decision be set aside or, alternatively, that strict and verifiable conditions be imposed, including monitoring and remediation. We attach our evidence.

[Names, addresses, date]

## 8F. Complaint on conditions and the environmental audit

### **Subject: Non-compliance with conditions and failure to conduct the environmental audit — [project]**

To the Director General, ZEMA:

We report that [company], holder of the decision letter dated [date] for [project], has failed to comply as follows: 1.

**Conditions.** [Condition \_\_\_ requires \_\_\_; as of [date] this has not been done — see attached dated photographs.] 2.

**Audit.** We are not aware that the required **environmental audit** was undertaken within the prescribed period following commencement of operations, nor of any **annual report** having been filed. 3. **Ongoing harm.** [Describe: discharges, fish deaths, crop failure, with dates.]

We request inspection, enforcement, and a written reply, and that ZEMA require an audit and remediation.

[Names, villages, date]

## 8G. Press release (effective)

**FOR IMMEDIATE RELEASE — [date]**

**Residents of [district] appeal to the Minister over [project] and pollution of the [river]**

Residents of [villages] have appealed to the Minister responsible for the Environment against ZEMA's approval of [project], operated by [company]. The residents say the project was **not publicised in [local language]**, the environmental impact statement was **not available in public buildings near the site**, and the hearing was held [distance] km away.

"[Short, human quote from an affected fisher or farmer]," said [name]. [Number] households depend on the [river] for drinking water, irrigation and fishing; dated photographs record the change in the water since [date]. [Where relevant: [company] is a subsidiary of [parent], listed in [country].]

**Contact:** [name, phone]. Photographs, the household record and interviews available on request.

## 8H. Approach to lawyers regarding a claim against a foreign parent

**Subject: Potential claim — pollution by [company], subsidiary of [parent], [country]**

Dear [firm / organisation],

We represent residents of [villages], [district], Zambia, affected by discharges from [project] operated by [company], a subsidiary of [parent], incorporated/listed in [country].

We can provide: a **household register** of [number] affected families recording water sources, land, fishing and losses with dates; **fixed-point photographs** from [dates]; **water sampling results** taken on [dates] with chain of custody; the **environmental impact statement and decision letter** obtained from ZEMA; our correspondence with ZEMA and the Minister; and [parent]'s published statements concerning environmental standards and oversight of subsidiaries.

We seek advice on whether a claim may be brought in [country] against the parent and the subsidiary, on the approach taken in the Zambian claims determined by the UK Supreme Court in 2019 and settled in 2021, and on what further evidence would be required.

[Name, community organisation, contact]

## Important Caveat

Templates are starting points. Adapt every one to your real facts, cite the actual decision letter and page references, and have counsel review anything heading to court. **Keep stamped copies of everything** — the documented request that went unanswered is evidence both on appeal and, later, about the adequacy of domestic remedies. Note the two timings that decide most cases: the **short appeal period** once a decision letter issues, and the **audit window** after operations begin. And confirm which **regulations** apply, since the framework was replaced in 2026.

## IF YOU HAVE LITTLE TIME OR FEW RESOURCES: THE RAPID-FIRE VERSION

Not everyone can run a long campaign. In Zambia a few precise, cheap acts carry disproportionate weight — and two of them cost nothing but paper. In rough order of impact for the effort:

1. **Ask for the documents in writing.** The **project brief, environmental impact statement, terms of reference, public comments, hearing report and decision letter** are **public documents** under the regulations (Section 8B). Either you get the file, which makes everything else possible, or you get a refusal that is itself a breach and a ground.

2. **Start fixed-point photographs of the water, dated.** Same spot, same angle, every month. Change over time is the single most persuasive evidence a Zambian community can produce, domestically or abroad.
3. **Start a household register.** One line per family: water source, land worked, fishing, losses, dates. This is what both the appeal and any foreign claim will be built from — the Chingola claims were brought by nearly two thousand named individuals.
4. **Record the process failures the day you notice them** (Section 8D): no publicity in the local language, no statement in public buildings nearby, a hearing held too far away.
5. **Appeal to the Minister if a decision letter issues** (Section 8E) — the Act gives **members of the public** that right, and the window is short.
6. **Find out who owns the operator.** If there is a **foreign parent**, that fact may matter more than anything else in this list.
7. **Send one accurate email to a reporter** (Section 8A), leading with the photographs and the unanswered document request.

If you do only the first three, you have secured the file, begun the evidence that proves change over time, and started the household record that every serious remedy depends on. That is a real contribution, not a token one.

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## WHEN THE SYSTEM IS TILTED

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Zambia's tilt is not primarily legal. The Act and regulations are comparatively generous. The tilt is **capacity and economics** — a stretched regulator facing an industry that dominates exports, revenue and employment.

### What This Tilt DOES (and DOESN'T DO)

The tilt means enforcement is thin against decades of accumulated pollution; the statement is written by the developer's consultants; a major mine may be a district's largest employer, so opposition carries social and economic cost for individuals; and domestic remedies have been slow enough that foreign courts treated that slowness as relevant. It does **not** close the doors: the Act creates a **right to a clean, safe and healthy environment**, guarantees **public participation and access to environmental information**, and gives **members of the public a right to initiate review and appeal** ZEMA's decisions, to the Minister and then the **High Court**; the regulations make the whole file **public documents**, require publicity **in a language the community understands**, require the statement to be placed **in public buildings near the site**, and require any hearing to be **accessible to those specifically affected**; approvals now **lapse after three years** without construction; and **audits** are compulsory after operations begin.

### Reading Your Tilt: Responsive, Mixed, Entrenched

- **Documents obtainable, procedural failures clear, harm to water documented.** The strongest position: appeal to the Minister on a clean record, and press conditions and audits.
- **Mixed.** Approval granted, works under way, but conditions unmet and audits overdue. Weight shifts to enforcement, remediation and the audit cycle — where most practical gains are actually won.
- **Entrenched.** A major mine that is the district's largest employer, with a domestic operator and no foreign parent. Assume refusal is out of reach; concentrate on **remediation, monitoring, compensation and health**, and on building the record patiently.
- **The special case. A foreign parent.** The calculus changes: evidence built to courtroom standard, household by household, may support a claim in the parent's home jurisdiction — the route that produced a settlement for over 2,500 Zambians.

### Documented Zambian Dynamics

The record shows both the constraint and the opening. **Zambian villagers reached the UK Supreme Court — 1,826 residents of Chingola** sued the operator of the Nchanga copper mine and its **UK parent** over discharges into the **Mushishima stream and Kafue River**, claiming injury, property damage and lost income from farming and fishing. The English courts took jurisdiction in **2016**, upheld in **2017**, and the **Supreme Court in 2019** allowed the claim to proceed — establishing that a **UK parent may be liable at home for harm by a foreign subsidiary. Access to justice at home was material** — the courts considered whether the claimants could obtain **substantial justice in Zambia**, a question that is itself a comment on domestic remedies. **It ended in settlement** — in **January 2021** more than **2,500 claimants** settled **without admission of liability**, in an undisclosed sum. **The relief sought was practical** — de-silting, waste removal, and remediation so people could **live, farm and fish** again. **And the domestic framework is real** — a public right of review and appeal, and a rule making the entire file public. The lesson: **build the evidence to**

the highest standard you can, because in Zambia it may travel further than you expect.

## Assessment Framework — Determine Your Situation

Ask: can we obtain the file, and if not, have we recorded the refusal? Was there publicity in the local language and local availability of the statement? Was any hearing accessible? Is the harm to **water, fishing and health** documentable household by household? Has a decision letter issued, and how long is left to appeal? Are conditions and audits being complied with? **Who owns the operator?** The answers tell you whether this is an appeal, an enforcement campaign, or a transnational claim.

## Direct Action: Factual Information (Descriptive, Not Prescriptive)

Zambian communities use meetings, petitions, council submissions, press work and peaceful demonstrations. Two cautions are specific. **Confrontation at mine gates, haul roads or infrastructure** can bring arrests and, in some cases, force. And in districts where a mine is the largest employer, **opposition carries social and employment pressure on individuals** — people may face hostility from neighbours whose wages depend on the operation. Plan for both: keep actions lawful and peaceful, take advice first, arrange legal support in advance, and protect individuals by acting collectively and by keeping the campaign focused on documented harm rather than on the mine's existence.

## Honest Assessment

Tilted fights are harder, and Zambia's are shaped by an industry the country depends on. But "harder" is not "hopeless": Zambian villagers obtained a landmark ruling in a foreign supreme court and a settlement for thousands, and the domestic framework gives the public documents and an appeal that are genuinely usable. Concentrate force where the tilt is weakest — **the public file, the procedural failures, the water evidence, and the ownership chain** — and build a record that would stand up anywhere.

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# WHEN IT'S ACTUAL CORRUPTION — AND WHO IS CAPTURED

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Most bad decisions are lawful decisions you disagree with, or decisions made by an under-resourced regulator. But capture is real. Read your situation actor by actor, and publish documents rather than accusations.

**The consultants and the statement.** Prepared and paid for by the developer. Signs: downstream users omitted, tailings and seepage treated cursorily, cumulative discharges unmentioned. Lever: independent sampling and a signed technical critique.

**Publicity and availability.** The cheapest way to exclude a community is to advertise in a language it cannot read and place the statement out of reach. Signs: no local-language publicity, no copy at the council. Lever: record it in writing the day you check — these are express requirements.

**Hearing venue.** A hearing far from affected villages is technically a hearing and practically an exclusion. Lever: the accessibility requirement, in writing, with distances.

**Enforcement after approval.** The consequential gap is usually not approval but the years after: conditions unmonitored, audits not done, annual reports unfiled. Lever: the compliance complaint and the audit requirement.

**Local politics and employment.** Where a mine is the district's largest employer, pressure falls on individuals rather than institutions. Lever: act collectively, keep accounts open, avoid making individuals the campaign's face.

**The parent's own words.** Where a foreign parent publicly claims to set and supervise environmental standards across its group while conditions contradict that, the gap is documentable — and in Chingola the parent's public statements were central to the duty-of-care argument. Lever: collect its annual reports and sustainability statements.

**How to act on it, safely.** Document from the public file, the registry and the parent's own disclosures before you speak. Route genuine concerns to **ZEMA**, the **Minister**, parliamentary committees, the **Auditor-General** for public money, and the **Human Rights Commission** where health and water rights are engaged — and, above all, into your **appeal, your compliance complaints and any claim abroad**, where they are protected and consequential. Do not publish unproven accusations about named individuals: it exposes the campaign and distracts from a documentary record that, in Zambia, has already proved powerful enough to reach a foreign supreme court.

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## INTEGRATION & TIMELINE

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The five steps run in parallel and reinforce each other. In Zambia the timeline has an unusual shape: a short administrative window at the start, a long enforcement phase afterwards, and — where a foreign parent exists — a transnational track that may run for years and is built entirely from the records you begin in week one.

### Realistic 12-Month Campaign Timeline

**Weeks 1-6 (Foundation).** - Request every **public document** from ZEMA in writing, and record the reply or silence (Section 8B). - Begin **fixed-point photography** of the stream and river, and the **household register**. - Establish the project's **class**, the instrument required, the council and district, the land tenure and chiefdom, and — critically — **who owns the operator**. - Contact a community or environmental organisation and a lawyer.

**Weeks 6-14 (The administrative window).** - File **substantive comments** and demand a **public hearing at an accessible venue**, naming villages and distances (Section 8C). - **Record process failures** the day you observe them: no local-language publicity, no statement in nearby public buildings, an inaccessible hearing (Section 8D). - Arrange **independent water sampling** upstream and downstream, dated, with chain of custody. - Launch media on the water evidence and the unanswered document request.

**Months 3-6 (Decision and appeal).** - On the **decision letter**, **appeal to the Minister immediately** — the right belongs to the public and the window is short (Section 8E). - Prepare for the **High Court** if the Minister's decision is unsatisfactory. - Broaden the coalition: downstream villages, fishing and farming associations, the council, the chiefdom, health workers, universities. - Where a **foreign parent** exists, begin assembling its published environmental commitments.

**Months 6-12 (Enforcement and escalation).** - Obtain the **conditions**; monitor compliance and press ZEMA to require the **environmental audit** and act on breaches (Section 8F). - Keep the household register and the photographs current — this is the phase most campaigns neglect and the one that produces remediation. - Where appropriate, approach lawyers experienced in **transnational claims** with the evidence assembled (Section 8H).

**Beyond 12 months.** - Enforcement and audit cycles recur annually — treat them as standing opportunities. - Watch the **three-year lapse** where construction has not begun. - A transnational claim can take years; the Chingola litigation ran from 2015 to a settlement in 2021. Continuity of records is what sustains it.

### Warning Signs — Act Early

An advertisement you cannot read in your own language; survey teams or drilling; a statement said to be available but not at the council; a hearing announced for a distant town; water changing colour; fish deaths; a decision letter issued without your knowing a process had run. Each is a trigger to **write the document request and start the photographs that day** — because in Zambia the record you begin early is the record that later carries an appeal, an enforcement complaint, or a claim abroad.

### Key Principles (What Separates Winning Campaigns from Losing Ones)

Winning campaigns: demand the public file in writing; photograph from fixed points, monthly, for years; keep a **household register**; record process failures on the day; use the **public right of appeal** within the window; enforce **conditions and audits** long after approval; and establish **who owns the operator**. Losing campaigns: never ask for documents the law already makes public; record harm only in aggregate; miss the short appeal period; treat approval as the end; and let the record lapse between crises.

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## FINAL ASSESSMENT

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### Real Outcomes: What Winning Looks Like

"Winning" in Zambia takes several forms, and it is worth naming them so you recognise a win when you get one: - the **public file obtained**, which alone changes what is possible; - a **hearing convened at a venue affected people can reach**; - an authorisation **refused, conditioned, or set aside** on appeal to the Minister or the High Court; - **conditions**

**enforced** and an **environmental audit** carried out, producing monitoring and remediation; - an approval that **lapses** because construction never began; - **remediation and compensation** — de-silting, waste removal, restoration of land so people can live, farm and fish again; - and, where a foreign parent stands behind the operator, a **claim abroad** of the kind that reached the UK Supreme Court in 2019 and settled in 2021 for more than **2,500** **Zambian claimants**.

Zambian communities have achieved every one of these, including the last.

## Decision Point: Continue, Modify, or Reassess

Reassess honestly at each milestone. While the assessment is running, your cheapest and highest-value acts are the document request and the record — do them regardless of what else you decide. Once a decision letter issues, the question is the **appeal window**, so act within days. If approval stands, do not treat that as defeat: **conditions, audits and remediation** are where most practical gains are won, and they recur annually. And if the operator is a **subsidiary of a foreign company**, keep building the household-level record even if progress at home stalls — that record is precisely what made a foreign remedy possible for the communities of Chingola, and the case took six years from filing to settlement.

## The Bottom Line

Zambia's regulator is stretched against an industry that dominates the economy, enforcement of legacy pollution is weak, and domestic remedies have been slow enough that foreign courts took note. But the framework gives communities more than it first appears. The **Environmental Management Act** provides a **right to a clean, safe and healthy environment**, guarantees **public participation and access to environmental information**, and — crucially — gives **members of the public a right to initiate review and appeal of ZEMA's decisions**, to the **Minister** and then the **High Court**. The regulations require the developer to **publicise the project in a language the community understands**, require the **environmental impact statement to be placed in public buildings near the site** and circulated to interested and affected parties, require any **hearing to be accessible to those specifically affected**, make the **entire assessment file public documents**, and impose a compulsory **environmental audit** after operations begin — with approvals now **lapsing after three years** if construction has not started. And beyond all of it stands the possibility that made Zambia's most famous environmental case: where the operator is the subsidiary of a **foreign parent**, that parent may answer at home, as the **UK Supreme Court** confirmed in 2019 before the claims of over **2,500 villagers** settled in 2021. Communities that request the public file the week they learn of a project, photograph the water from fixed points month after month, keep a household register of losses, record every process failure on the day, appeal within the window, enforce the conditions and the audit, and follow the ownership chain have obtained documents, hearings, remediation, compensation — and, once, a judgment that changed the law of another country. No single step wins; the combination does. Start today by writing one letter asking for the file, and by photographing the water.